



File No: EXP202302546

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against MIFARMA TIENDA ON-LINE, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

<<

Procedure No: EXP202302546 (PS/0228/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 01/24/23, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity MIFARMA TIENDA ON-LINE, S.L. with CIF: B02518041 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 04/27/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complaint was filed due to the sending of commercial electronic communications after the claimant's request for deletion was attended to.

The claimant provided the following documentation with the complaint:

- Provided a list of emails received on 12/23/22 from the address "atida/Mifarma," containing advertising messages.
- Provided an email sent on 12/23/22 to the email address dpo-es@atida.com, requesting the deletion of their personal data to no longer receive advertising emails.
- Provided the email received on 12/23/22 from the address "Data Protection Officer" dpo-es@atida.com, informing that their request to not receive further advertising emails had been attended to.
- Provided a list of emails received on 12/26/22 and 01/02/23 from the address "atida/Mifarma," containing advertising messages.

SECOND: On 02/27/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

The notification was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP). According to the certificate from the Electronic Notifications and Electronic Address Service, the request sent to the respondent on 02/27/23, through the electronic notification service "NOTIFIC@," was received at the destination on 03/01/23 by ***NIF.1- B.B.B..

There is no record in this Agency of any communication from the respondent regarding the request made.

THIRD: On 04/24/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD, upon noting possible rational indications of a violation of the regulations within the scope of the competencies of the Spanish Agency for Data Protection.

LEGAL GROUNDS

I-

Competence

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

II.-1

Classification of the possible infringement committed by sending emails with advertising messages after having previously opposed it:

In this case, the claimant received in their email account a promotional message sent from the address "atida/Mifarma" on 12/23/22 containing commercial information. On the same day, they forwarded to the address dpo-es@atida.com the request to not receive further advertising emails, receiving an email from that address indicating that their request had been attended to.

However, the claimant received two more emails in their account, sent on 12/26/22 and 01/02/23, from the respondent's email account containing advertising messages.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

In this regard, Article 21.1 of the LSSI states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited."

Therefore, in accordance with the evidence available at this time, and without prejudice to the outcome of the investigation, the facts presented could constitute a violation of Article 21.1 of the LSSI by the respondent for sending an advertising email after the complainant opposed receiving such electronic communications.

II.-2

Proposal for Sanction

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

In accordance with these criteria, it is deemed appropriate to impose an initial sanction of €2,000 (two thousand euros) for the infringement of Article 21.1 of the LSSI regarding the sending of advertising emails after the complainant opposed receiving such electronic communications.

Therefore, based on the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

TO INITIATE: SANCTIONING PROCEDURE against the entity MIFARMA TIENDA ON-LINE, S.L. with CIF: B02518041 for infringement of Article 21.1 of the LSSI, regarding the sending of an advertising email after the complainant opposed it.

TO APPOINT: as Instructor R.R.R., and Secretary, if applicable, S.S.S., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

TO INCORPORATE: into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

THAT: for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €2,000 (two thousand euros) for the infringement of Article 21.1 of the LSSI.

TO NOTIFY: this agreement to initiate a sanctioning file to the entity MIFARMA TIENDA ON-LINE, S.L., granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that should be imposed in this procedure, equivalent in this case to €400. With the application of this reduction, the sanction would be set at €1,600, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of the amount, equivalent in this case to €400. With the application of this reduction, the sanction would be set at €1,600, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at €1,200 (one thousand two hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If the option is taken to proceed with the voluntary payment of any of the amounts indicated above, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Additionally, the proof of payment must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/7

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. Upon the expiration of this period, it shall lapse, and consequently, the file shall be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPA-CAP, no administrative appeal may be filed against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

>>

SECOND: On June 28, 2023, the respondent has proceeded to pay the fine in the amount of 1200 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/7

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202302546, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to MIFARMA TIENDA ON-LINE, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

C/ Jorge Juan, 6
www.aepd.es

28001 – Madrid
sedeagpd.gob.es

7/7

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid
sedeagpd.gob.es